

The U.P. Urban Buildings (Regulation of Letting, Rent and Eviction) Act, 1972

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State of Uttar Pradesh - Act

The U.P. Urban Buildings (Regulation of Letting, Rent and Eviction) Act, 1972

UTTAR PRADESH

India

The U.P. Urban Buildings (Regulation of Letting, Rent and Eviction) Act, 1972

Act 13 of 1972

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The U.P. Urban Buildings (Regulation of Letting, Rent and Eviction) Act, 1972

(U.P. Act

No. 13 of 1972

)

An Act to provide, in the interest of the general public, for the regulation of letting, and rent of, and the eviction of tenants from, certain classes of buildings situated in urban areas, and for matters connected therewith.

It Is Hereby enacted in the Twenty-third Year of the Republic of India as follows :-

Chapter I

Preliminary

1.

Short title, extent, application and commencement.

(1)

This Act may be called the Uttar Pradesh Urban Buildings (Regulation of Letting, Rent and Eviction) Act, 1972.

(2)

It extends to the whole of Uttar Pradesh.

(3)

It shall apply to-

(a)

every city as defined in the Uttar Pradesh Nagar Mahapalika Adhiniyam, 1959 ;

(b)

every municipality as defined in the United Provinces Municipalities Act, 1916 ;

(c)

every notified area constituted under the United Provinces Municipalities Act, 1916 ;and

(d)

every town area constituted under the United Provinces Town Areas Act, 1914:

Provided that the State Government, if it is satisfied that it is necessary or expedient so to do in the interest of the general public, residing in any other local area, may by notification in the Gazette declare that this Act or any part thereof shall apply to such area, and thereupon this Act or part shall apply to such area :

Provided further that the State Government, if it is satisfied that it is necessary or expedient so to do in the interest of general public, may by notification in Gazette-

(i)

cancel or amend any notification issued under the preceding proviso; or

(ii)

declare that the Act or any part thereof, as the case may be, shall cease to apply to any such city, municipality, notified area, town area or other

(4)

It shall come into force on such date as the State Government may by notification in the Gazette appoint

2.

Exemptions from Operation of Act.

(1)

Nothing in this Act shall apply to-

(a)

any building belonging to or vested in the Government of India or the Government of any State or any local authority ; or

(b)

any tenancy created by grant from the State Government or the Government of India in respect of a building taken on lease or requisitioned by such Government ;, or

(c)

any building used or intended to be used as a factory within the meaning of the Factories Act, 1948 ; or

(d)

any building used or intended to be used for any other industrial purpose (that is to say, for the purpose of manufacture, preservation or processing of any goods) or as a cinema or theatre, where the plant and apparatus installed for such purpose in the building is leased out along with the building :

Provided that nothing in this clause shall apply in relation to any shop or other building, situated within the precincts of the cinema or theatre, the tenancy in respect of which has been created separately from the tenancy in respect of the cinema or theatre ; or

(e)

any building used or intended to be used as a place of public entertainment or amusement (including any sports stadium, but not including a cinema or theatre) , or any building appurtenant thereto ; or

(f)

any building built and held by a University or any other statutory corporation or' by a society registered under the

Societies Registration Act, 1860, or by a co-operative society, company or firm, and intended solely for its own occupation or for the occupation of any of its officers or servants, whether on rent or free of rent, or as a guest house, by whatever name called, for the occupation of persons having dealing with it in the ordinary course of business.

(2)

Except as provided in sub-section (2) of section 24 or sub-section (3) of section 29, nothing in this Act shall apply to a building during a period of ten years from the date on which its construction is completed.

Explanation - For the purposes of this sub-section,-

(a)

the construction of a building shall- be deemed to have been completed on the date on which-the completion thereof is reported to or otherwise recorded by the local authority having jurisdiction, and in the case of a building subject to assessment, the date on which the first assessment thereof comes into effect, and where the said dates are different, the earliest of the said dates, and in the absence of any such report, record or assessment, the date on which it is actually occupied (not including occupation merely for the purposes of supervising the construction or guarding the building under construction) for the first time :

Provided that there may be different dates of completion of construction in respect of different parts of a building which are either designed as separate units or are occupied separately by the landlord and one or more tenants or by different tenants ;

(b)

"construction" includes any new construction in place of an existing building which has been wholly or substantially demolished ;

(c)

where such substantial addition is made to an existing building that the existing building becomes only a minor part thereof the whole of the building including the existing building shall be deemed to be constructed on the date of completion of the said addition.

(3)

The State Government, if it is satisfied that it is necessary or expedient so to do in the interest of genera public, may by notification in the Gazette, exempt from all or any of the provisions of this Act any building which is owned by an educational or charitable institution and the whole of the income derived from which is utilised for the purposes of that institution, and may in the like manner cancel or amend such notification.

3.

Definition.

- In this Act, unless the context otherwise requires-

(a)

"tenant", in relation to a building, means a person by whom its rent is payable, and on the tenant's death, his heirs ;

(b)

"house tax" means the tax mentioned in. section 128 (1) (i) of the United PTP:IICCS Municipalities Act, 1916, or section 173 (1) (a) of the Uttar Pradesh Nagar Mahapalika Adhiniyam, 1959, or, as the case may be, section 14 (I) (e) of the 'United Provinces Town Areas Act, 1914 ;

(c)

"District Magistrate" includes an officer authorised by the District Magistrate to exercise, perform and discharge all or any of his powers, functions and duties under this Act, and different officers may be so authorised in respect of different areas or cases or classes of cases, and the District Magistrate mar recall any case from any such officer and either dispose of it himself or transfer it to any other such officer for disposal :

Provided that nothing in this clause shall be construed to empower the District Magistrate to delegate his power to authorise an officer to perform the functions of the prescribed authority under clause (e) or the power to make or authorise the making of a complaint under section 33 ;

(d)

"prescribed", except in clause (e) , means prescribed by rules made under this Act ;

(e)

"prescribed authority" means a Magistrate of the first class having experience as such of not less than three years, authorised by the District Magistrate to exercise, perform and discharge all or any of the powers, functions and duties of

the prescribed authority under this Act, and different Magistrates may be so authorised in respect of different areas or cases or classes of cases, and the District Magistrate may recall any case from any such magistrate and may either dispose of it himself or transfer it for disposal to any other such magistrate ;

(f)

"assessment", in relation to a building, means the, assessment or proportionate assessment, as the case may be, of the letting value thereof by the local authority having jurisdiction, and "assessed" shall be construed accordingly ;

(g)

"family", in relation to a landlord or tenant of a building, means his or her-

(i)

spouse,

(ii)

male lineal descendants,

(iii)

such parents, grand parents and any unmarried or widowed or divorced or judicially separated daughter or daughter of a male lineal descendant, as may have been normally residing with him or her, and includes, in relation to a landlord, any female having a legal right of residence in that building ;

(h)

"the old Act", means the United Provinces (Temporary) Control of Rent and Eviction Act, 1947 ;

(i)

"building", means a residential or non-residential roofed structure and includes-

(i)

any land (including any garden), garages and out-houses, appurtenant to such building ;

(ii)

any furniture supplied by the landlord for use in such building ;

(iii)

any fittings and fixtures affixed to such building for the more beneficial enjoyment thereof ;

(j)

"landlord", in relation to a building, means a person to whom its rent is or if the building, were let would be, payable, and includes, except in clause (g), the agent or attorney, of such person ;

(k)

"standard rent", subject to the provisions of sections 6, 8 and 10, means-

(i)

in the case of a building governed by the old Act and let out at the time of the commencement of this Act-

(a)

where there is both an agreed rent payable therefor at such commencement as well as a reasonable annual rent [which in this Act has the same meaning as in section 2 (f) of the old Act, reproduced in the Schedule], the agreed rent, or the reasonable annual rent plus 25 per cent thereon, whichever is greater ;

(b)

where there is no agreed rent, but there is a reasonable annual rent, the reasonable rent plus 25 per cent thereon ;

(c)

where there is neither agreed rent nor reasonable annual rent, the rent as determined under section 9;

(ii)

in any other case, the assessed letting value for the time being in force, and in the absence of assessment, the rent determined under section 9 ;

(l)

"State Government" means the Government of Uttar Pradesh ;

(m)

"local authority" means a Nagar Mahapalika Municipal board, notified area committee or town area committee;

(n)

"improvement", in relation to a building, means any addition to it or alteration thereof or the provision of any new amenity to the tenant, and includes all repairs made in any year the cost whereof exceeds the amount of one month's rent

thereof or, in the case mentioned in the proviso to sub-section (2) of section 28, two months' rent thereof.

Chapter II

Regulation of Rent

4.

Prohibition of premium, and rent payable generally.

(1)

No landlord shall take or receive for admitting a tenant to any building any premium or additional payment over and above the rent payable therefor, nor shall a tenant take or receive any premium for admitting a sub-tenant or any other person.

(2)

Except as provided in sections 5, 6, 7, 8 and 10, the rent payable for any building shall be such as may be agreed upon between the landlord and the tenant, and in the absence of any agreement, the standard rent.

5.

Rent payable in case of old buildings.

- In the case of a tenancy continuing from before the commencement of this Act, in respect of a building to which the old Act was applicable, the landlord may, by notice in writing, given within three months from the commencement of this Act, enhance the rent payable therefor to an amount not exceeding the standard rent, and the rent so enhanced shall be payable from the commencement of this Act.

6.

Effect of Improvements on rent.

- Notwithstanding, anything contained in section 4 or section 5, but subject to the provisions of section 8, where the landlord has, after the commencement of this Act, either with the consent of the tenant or in pursuance of any requirement of law, made any improvement in a building, he may by notice in writing to the tenant, given within three months from the date of completion of the improvement, enhance the monthly rent of the building by an amount not exceeding one per cent of the actual cost of such improvement, with effect from the said date, and thereupon the standard rent of that building shall stand enhanced accordingly.

7.

Liability to pay taxes.

- Subject to any contract in writing to the contrary, but notwithstanding anything contained in section 179 of the Uttar Pradesh Nagar Mahapalika Adhiniyam, 1959 or in section 149 or in any rule made or notification issued under section 338 of the United Provinces Municipalities Act, 1916 or in section 14 (1) (e) of the United Provinces Town Areas Act, 1914, the tenant shall be liable to pay to the landlord in addition to and as part of the rent, the following taxes or proportionate part thereof, if any, payable in respect of the building or part under his tenancy, namely :-

(a)

the water tax ;

(b)

twenty-five per cent of every such enhancement in house tax made after the commencement of this Act, or such portion thereof, as is not occasioned on account of the increase in the assessment of the building as a result of the enhancement of rent under the provisions of section 5;

Provided that nothing in this section shall apply in relation to a tenant the rate of rent payable by whom for the time being (excluding any enhancement or rent under provisions of section 5) does not exceed twenty-five rupees per month.

8.

Disputes regarding amount of standard rent, etc.

(1)

Where a dispute arises with regard to the amount of the standard rent or to the amount of enhancement in rent permissible under section 5 or section 6 or to the date with effect from which such enhancement shall take effect, or to the amount of taxes payable by the tenant under section 7, or to the amount of proportionate rent payable by the tenant after a part of the building or any land appurtenant thereto is released under section 16 or section 21, or to the amount at rent payable by the original tenant for the new building allotted to him under sub-section (2) of section 24, the District Magistrate shall, on an application being made in that behalf, by order determine such amount.

(2)

Where the assessment of a building occupied by a tenant is lower than the agreed rent payable therefor, the District Magistrate, on an application of the tenant or of his own motion, may, after giving to the landlord an opportunity of being heard, direct the local authority concerned to enhance the assessment in accordance with the agreed rent with effect from the date from which the agreed rent has been payable or the date of commencement of this Act, whichever is later, and thereupon, notwithstanding anything contained in the law relating to that local authority, the assessment shall be corrected accordingly.

(3)

Every order under sub-section (1) or sub-section (2) shall, subject to the result of any appeal preferred under section 10, be final

9.

Determination of standard rent.

(1)

In the case of a building to which the old Act was applicable and which is let out at the time of the commencement of this Act in respect of which there is neither any reasonable annual rent nor any agreed rent or in any other case where there is neither any agreed rent nor any assessment in force, the District Magistrate shall, on an application being made in that behalf, determine the standard rent.

(2)

In determining the standard rent, the District Magistrate may consider :-

(a)

the respective market value of the building and of its site immediately before the date of commencement of this Act or the date of letting, whichever is later (hereinafter in this section referred to as the said date);

(b)

the cost of construction, maintenance and repairs of the buildings;

(c)

the prevailing rents for similar buildings in the locality immediately before the said date ;

(d)

the amenities provided in the building ;

(e)

the latest assessment, if any, of the building ;

(f)

any other relevant fact which appears in the circumstances of the case to be material.

(3)

Every order made under sub-section (1) shall, subject to the result of any appeal preferred under section 10, be final.

10.

Appeal against order under sections 8 and 9.

(1)

Any person aggrieved by an order of the District Magistrate under section 8 or section 9 may, within thirty days from the date of the order, prefer an appeal against it to the District Judge, and the District Judge may either dispose of it himself or assign it for disposal to any Additional District Judge under his administrative control, and may recall it from any such officer, or transfer it to any other such officer.

(2)

The appellate authority may confirm, vary or rescind the order, or remand the case to the District Magistrate for rehearing, and may also take any additional evidence, and pending its decision, stay the operation of the order under appeal on such terms, if any, as it thinks fit.

(3)

No further appeal or revision shall lie against any order passed by the appellate authority under this section, and its order shall be final.

Chapter III

Regulation of Letting

11.

Prohibition of letting without allotment order.

- Save as hereinafter, provided, no person shall let any buildings except letting without allotment order issued under section 16.

12.

Deemed vacancy of building in Certain cases.

(1)

A, landlord or tenant of a building shall be deemed to have ceased to occupy the building or part thereof if-

(a)

he has substantially removed his effects therefrom, or

(b)

he has allowed it to be occupied by any person who is not a member of his family, or

(c)

in the case of a residential building, he as well as members of his family have taken up residence, not being temporary residence, elsewhere.

(2)

In the case of a non-residential building, where a tenant carrying on business in the building admits a person who is not a member of his family as a partner or a new partner, as the case may be, the tenant shall be deemed to have ceased to occupy the building.

(3)

In the case of a residential building, if the tenant or any member of his family builds or otherwise acquires in a vacant state or gets vacated a residential building in the same city, municipality, notified area or town area in which the building under tenancy is situate, he shall be deemed to have ceased to occupy the building under his tenancy :

Provided that if the tenant or any member of his family had built any such residential building before the date of commencement of this Act, then such tenant shall be deemed to have ceased to occupy the building under his tenancy upon the expiration of a period of one year from the said date.

(4)

Any building or part which a landlord or tenant has ceased to occupy within the meaning of sub-section (1), or sub-section (2) , or sub-section (3), shall, for the purposes of this Chapter, be deemed to be vacant.

13.

Restriction on occupation of building without allotment or releases.

- Where a landlord or tenant ceases to occupy a building or part thereof, no person shall occupy it in any capacity on his behalf, or otherwise than under an order of allotment or release under section 16, and if a person so purports to occupy it he shall, without prejudice to the provisions of section 31, be deemed to be an unauthorised occupant of such building or part.

14.

Regularisation of occupation of existing tenants.

- Notwithstanding, anything contained in any general order made under sub-section (2) of section 7 of the old Act, any tenant in occupation of a building with the consent of the landlord immediately before the commencement of this Act, not being a person against whom proceedings under section 7-A of the old Act are pending immediately before such commencement, shall deemed to be in authorised occupation of such building.

15.

Obligation to Intimate vacancy to District magistrate.

(1)

Every landlord shall, on a building falling vacant by his ceasing to occupy it or by the tenant vacating it or by release from requisition or in any other manner whatsoever, give notice of the vacancy in writing to the District Magistrate not later than seven days after the occurrence of such vacancy, and such notice may at the option of the landlord be given before the occurrence of the vacancy.

(2)

Every tenant so vacating a building shall give notice thereof in writing to the District Magistrate and also ,to the land lord not less than fifteen days before the vacancy.

(3)

The notice under sub-section (1), or sub-section (2) shall contain such particulars as may be prescribed.

(4)

The District Magistrate, on being satisfied on an application made to him in that behalf that there was sufficient cause for the landlord of the tenant not to give notice under sub-section (1) or sub-section (2) within time, may condone such delay.

16.

Allotment and release of vacant building.

(1)

Subject to the provisions of this Act, the District Magistrate may Allotment and by order-

(a)

require the landlord to let any building which is or has, fallen vacant or is about to fall vacant, or a part of such building but not appurtenant land alone, to any person specified in the order (to be called an allotment order) ; or

(b)

release the whole or any part of such building, or any land appurtenant therein, in favour of the landlord (to be called a release order).

(2)

No release order under clause (b) of sub-section (1) shall be made unless the District Magistrate is satisfied that the building or any part thereof or any land appurtenant thereto is bona fide required, either in its existing form or after demolition and new construction, by the landlord for occupation by himself or any member of his family, or any person for whom benefit it is held by him, either for residential purposes or for purposes of any profession, trade, calling or where the landlord is trustee of a public charitable trust for the objects of the trust. or that the building or any part thereof is in a dilapidated condition and is required for purposes of demolition and new construction, or that any land appurtenant to it is required by him for constructing one or more new buildings or for dividing it into several plots with a view to the sale thereof for purposes of construction of new buildings :

Provided that no application under this sub-section shall be entertained for the purposes of a charitable trust the objects of which provide for discrimination in respect of its beneficiaries on the ground of religion, caste or place of birth.

(3)

The allotment order shall specify-

(a)

whether the building shall be used by the tenant for residential or non-residential purposes ;

(b)

in the case of business purposes, the names of proprietors or partners of the business;

(c)

the date which shall not be earlier than seven days after the date of the order, by which the landlord shall deliver possession to the allottee ;

(d)

such other particulars as may be prescribed.

(4)

Where the allottee or the landlord has not been able to obtain possession of the building, allotted to him or, as the case may be, released in his favour, or any part thereof, and any other person has 'occupied or continued to occupy it, the District Magistrate, on an application of the allottee or the landlord, as the case may be, may by order evict or cause to be evicted any person named in the order as well as every other 'person claiming under him or found in occupation, and may for that purpose use or cause to be used such force as may be necessary and put or cause to be put the allottee or the landlord in possession of the building or part.

(5)

(a)

Where the landlord or any other person claiming to be a lawful occupant of the building or any part thereof comprised in the allotment or release order satisfies the District Magistrate that such order was not made- in accordance with clause (a) or clause (b) , as the case may be, of sub-section (1), the District Magistrate may review the order :

Provided that no application under this clause shall be entertained later than seven days after the eviction of such person.

(b)

Where the District Magistrate on review under this sub-section sets aside or modifies his order of allotment or release, he shall put or cause to be put the applicant, if already evicted, back into possession of the building, and may for that purpose use or cause to be used such force as may be necessary.

(6)

If the District Magistrate finds an application given under sub-section (5) to be false or frivolous, he shall by order award to the allottee or the land-lord, as the case may be, against, the applicant special costs which shall not exceed five hundred rupees.

(7)

Every order under this section shall, subject to the result of any appeal under section 18, be final.

(8)

The allottee shall, subject to the provisions of sub-section (5) and section 18, be deemed to become tenant of the building from the date of allotment or, where he is unable to obtain possession by reason of a stay order or of any other person having occupied or continued to occupy the building, from the date on which he obtains possession.

(9)

The District Magistrate may on an application being made in that behalf by the landlord, by order require the allottee to pay to the landlord an advance-

(a)

where the building is situated in a hill municipality, of one half of the yearly rent ; and

(b)

in any other case, of one month's rent ;

and on his failure to make the payment within a week thereof, rescind the allotment order.

17.

Conditions of making allotment order.

(1)

Where the District Magistrate receives an intimation, under subsection (1) of section 15, of the vacancy or expected vacancy of a building any allotment order in respect of that building shall be made and communicated to the landlord within twenty-one days from the date of receipt of such intimation, and where no such order is so made or communicated within the said period, the landlord may intimate to the District Magistrate the name of a person of his choice, and thereupon the District Magistrate shall allot the building in favour of the person so nominated unless for special and adequate reason to be recorded he allots it to any other person within ten days from the receipt of intimation of such nomination:

Provided that where the landlord has made an application under clause (b) of sub-section (1) of section 16, for the release of the whole or any part of the building or land appurtenant thereto in his favour, the said. period of twenty-one days shall be computed from the date of decision on that application or where an application for review or an appeal is filed against such decision, from the date of decision on such application or appeal.

(2)

Where a part of a building is in the occupation of the landlord for residential purposes or is released in his favour under clause (b) of sub-section (1) of section 16 for residential purposes, the allotment of the remaining part thereof under clause (a) of the said sub-section (1) shall be made in favour of a person nominated by the landlord.

18.

Appeal against order of allotment or release.

(1)

Any person aggrieved by an order under section 16 or section 19 may, within fifteen days from the date of the order prefer an appeal against it to the District Judge, and in other respects, the provisions of section 10 shall mutatis mutandis apply in relation to such appeal.

(2)

Where and in so far as an order under section 16 or section. 19 is varied or rescinded, the District Magistrate shall, on an application being made to him on that behalf, place the parties back in the position which they would have occupied but for such order or such part thereof as has been varied or rescinded; and may for' that purpose use or cause to be used such force as may be necessary.

19.

Re-allotment in the event of landlord abusing the release order.

- Where a building or part thereof is released in favour of the landlord under section 16, or on appeal under section 18, on the ground that it was required by the landlord for occupation by himself or any member of his family or any person for whose benefit it was held by him, or for the objects of the trust of which he was trustee, or on the ground that it was required for purposes of demolition and new construction, and the landlord either puts or causes to be put into occupation any person different from the person for whose occupation, according to the landlord's representation, it was required, or permits any such person to occupy it, or otherwise puts it to any use other than the one for which it was released or as the case may be, omits to occupy it within one month or such extended period as the District Magistrate may for sufficient cause allow from the date of his obtaining possession or in the case of a building which was proposed to be occupied after some construction or reconstruction, from the date of completion thereof, the District Magistrate or, as the case may be, the District Judge, on an application being made in that behalf within three months from the date of such act or omission, may after giving to the landlord an opportunity of being heard, revoke the order of release in whole or in part, and on such order being made, the District Magistrate may treat the building or part as vacant and allot it as such.

Chapter IV

Regulation of Eviction

20.

Bar of suit for eviction of tenant except on specified grounds.

(1)

Save as provided in sub-section (2), or in clause (r) of subsection (2) of section 4a, no suit shall be instituted for the eviction of a tenant from a building, notwithstanding the determination of his tenancy by on the expiration of a notice to quit or in any other manner :

Provided that nothing in this sub-section shall bar a suit for the eviction of a tenant on the determination of his tenancy by efflux of time where the tenancy for a fixed term was entered into by or in pursuance of a compromise or adjustment arrived at with reference to a suit, appeal, revision or execution proceeding. which is either recorded in court o otherwise reduced to writing and signed by the tenant.

(2)

A suit for the eviction of a tenant from a building after the determination of his tenancy may be instituted on one or more of the following grounds, namely : -

(a)

that the tenant is in arrears of rent for not less than four months. and has failed to pay the same to the landlord within one month from the date of service upon him of a notice of demand:

Provided that in relation to a tenant who is a member of the armed forces of the Union and in whose favour the prescribed authority under the Indian Soldiers (Litigation) Act, 1925 has issued a certificate that he is serving under special conditions within the meaning of section 3 of that Act or where he has died by enemy action while so serving, then in relation to his heirs, the words "four months" in this clause shall be deemed to have been substituted by the words "one year";

(b)

that the tenant has wilfully caused or permitted to be caused substantial damage to the building;

(c)

that the tenant has without the permission in writing of the landlord made or permitted to be made any such construction or structural alteration in the building as is likely to diminish its value or utility or to disfigure it ;

(d)

that the tenant has done any act which is inconsistent with the purpose for which he was admitted to the tenancy of the building, or has without the consent in writing of the landlord used it for a purpose other than such purpose, or has been convicted under any law for the time being in force of an offence of using the building or allowing it to be used for illegal or immoral purposes;

(e)

that the tenant has sub-let, in contravention of the provisions of section 25, or as the case may be, of the old Act, the whole or any part of the building;

(f)

that the tenant has renounced his character as such or denied the title of the landlord, and the latter has not waived his right of reentry or condoned the conduct of the tenant ;

(g)

that the tenant was allowed to occupy the building as part of his contract of employment under the landlord, and his employment, has ceased.

(3)

In any suit under sub-section (2), the tenant shall, at or before the first hearing of the suit, deposit the entire amount of rent or damages for use and occupation admitted by him to be due, and thereafter throughout the continuance of the suit, deposit regularly the amount of monthly rent or damages for use and occupation due at the rate of rent admitted by him, and in the event of any default in this regard, the court may, unless after considering any representation made by him in that behalf it allows him further time, on security being furnished for that amount, refuse to entertain any defence or, as the case may be, strike off his defence.

(4)

In any suit for eviction on the ground mentioned in clause (a) of sub-section (2), if at the first hearing of the suit the tenant unconditionally pays or tenders to the landlord the entire amount of rent and damages for use and occupation of the building due from him such damages for use and occupation being calculated at the same rate as rent) together with interest thereon at the rate of nine per cent per annum and the landlords' costs of the suit in respect thereof, after deducting therefrom any amount already deposited by the tenant under sub-section (1) of section 30, the court may, in lieu of passing a decree for eviction on that ground, pass an order relieving the tenant against his liability for eviction on that ground :

Provided that nothing in this sub-section, shall apply in relation to a tenant who or any member of whose family has built or has otherwise acquired in a vacant state, or has got vacated after acquisition. any residential building in the same city, municipality, notified area or town area.

(5)

Nothing in this section shall affect the power of the court to pass a decree on the basis of an agreement, compromise or satisfaction recorded under rule 3 of Order XXIII of the First Schedule to the Code of Civil Procedure, 1908.

(6)

In the Provincial Small Cause Courts Act, 1887, in the second schedule, in entry no. (4) the following shall be inserted at the end, namely-

"But not including a suit by a landlord for the eviction of a tenant (after the determination of his tenancy) from a building as defined in the Uttar Pradesh Urban Buildings (Regulation of Letting, Rent and Eviction) Act, 1972."

21.

Proceeding for release of building under occupation of tenant.

(1)

The prescribed authority may, on an application of the landlord in that behalf, order the eviction of a tenant from the building under tenancy or any specified part thereof if it is satisfied that any of the following grounds exists namely-

(a)

that the building is bona fide required either in its existing form or after demolition and new construction by the landlord for occupation by himself or any member of his family, or any person for whose benefit it is held by him, either for residential purposes or for purposes of any profession, trade or calling, or where the landlord is the trustee of a public charitable trust, for the objects of the trust :

(b)

that the building is in a dilapidated condition and is required for purposes of demolition and new construction :

Provided that where the building was in the occupation of a tenant since before its purchase by the landlord, such purchase being made after the commencement of this Act, no application shall be entertained on the grounds, mentioned in clause (a), unless a period of three years has elapsed since the date of such purchase and the landlord has given a notice in that behalf to the tenant not less than six months before such application, and such notice may be given even before the expiration of the aforesaid period of three years :

Provided further that if any application under clause (a) is made in respect of any building in which the tenant is engaged in any profession, trade or calling, the prescribed authority while making the order of eviction shall, after considering all relevant facts of the case, award against the landlord to the tenant an amount equal to two years' rent as compensation

and may, subject to rules, impose such other conditions as he thinks fit :

Provided also that no application under clause (a) shall be entertained-

(i)

for the purposes of a charitable trust, the objects of which provide for discrimination in respect of its beneficiaries on the ground of religion, caste or place of birth ;

(ii)

in the case of any residential building, for occupation for business purposes :

(iii)

in the case of any residential building, against any tenant who is a member of the armed forces of the Union and in whose favour the prescribed authority under the Indian Soldiers (Litigation) Act, '1925 has Issued a certificate that he is serving under special conditions within the meaning of section 3 of that Act, or where he has died by enemy action while so serving then against his heirs.

Explanation - In the case of a residential building :-

(i)

where the tenant or any member of his family has built or has otherwise acquired in a vacant state or has got vacated after acquisition a residential building in the same city, municipality, notified area or town area, no objection by the tenant against an application under this sub-section shall be entertained ;

(ii)

where the landlord was engaged in any profession, trade, calling or employment, away from the city, municipality, notified area or town area within which the building is situate and by reason of the cessation of such engagement, he needs the building for occupation by himself for residential purposes, such need shall be deemed sufficient for purposes of clause (a) ;

(iii)

where the landlord is a member of the armed forces of the Union and the prescribed authority under the Indian Soldiers (Litigation) Act, 1925, has issued a certificate in his favour that he is serving under special condition within the meaning of section 3 of o that Act, then ,his representation that he needs the building for residential purposes for members of his family whose particulars are specified in the application shall be deemed sufficient for purposes of clause (a) ;

(iv)

the fact that the building under tenancy is a part of a building the remaining part whereof is in the occupation of the landlord for residential purposes, shall be conclusive to prove that the building is bona fide required by the landlord.

(2)

The prescribed authority may on an application of the landlord in that behalf order the eviction of a tenant from any surplus land appurtenant to the building under tenancy if it is satisfied that the land is required for constructing one or more new buildings, or for dividing it into several plots with a view to the sale thereof for purposes of construction of new buildings, and in either case, that the competent authority under any law for the time being in force has approved a plan for the said purpose.

Explanation - Where the appurtenant land including passage exceeds double the covered area of the building, the excess area shall be deemed to be surplus land.

(3)

No order shall be made under sub-section (1), or subsection (2) except after giving to the parties concerned a reasonable opportunity of being heard.

(4)

An order under sub-section (1) , or sub-section (2) , may be made notwithstanding that the tenancy has not been determined :

Provided that no such order shall be made in the case of a tenancy created for a fixed term by a registered lease, before the expiry of such term.

(5)

On an order being made under sub-section (1) , or sub-section (2) , the building or part or appurtenant land, as the case may be, shall stand released in favour of the landlord :

Provided that on the occurrence of any of the circumstances mentioned in section 24, any building or part thereof (but not appurtenant land alone) released as above, shall, without prejudice to the provisions of section 24, be deemed to

become again subject to allotment in accordance with Chapter III.

(6)

On the expiration of a period of thirty days from an order under sub-section (1) or sub-section (2), the tenancy of the tenant shall stand determined in its entirety or, as the case may be, in respect of any part or appurtenant land released in favour of the landlord, and in the latter case, the rent payable for the remainder of the building under tenancy shall be such as may be agreed upon between the parties and in the absence of such agreement as may be determined under section 8.

22.

Appeal.

- Any person aggrieved by an order under section 21 or section 24 may within thirty days from the date of the order prefer an appeal against it to the District Judge, and in other respects, the provisions of section 18 shall mutatis mutandis apply in relation to such appeal.

23.

Enforcement eviction order.

(1)

The prescribed authority may use or cause to be used such force as may be necessary for evicting any tenant against whom an order is made under section 21 or on appeal under section 22, as the case may be, or against any other person found in actual occupation, and for putting the landlord into possession.

(2)

Every order of the prescribed authority in proceedings under this section shall be final.

24.

Option of Cr-entry by tenant.

(1)

Where a building is released in favour of the landlord and the tenant is evicted under section 21 or on appeal under section 22, and the landlord either puts or causes to be put into occupation thereof any person different from the person for whose occupation according to the landlord's representation, the building was required, or permits any such person to occupy it, or otherwise puts it to any use other than the one for which it was released, or as the case may be, omits to occupy it within one month or such extended period as the prescribed authority may for sufficient cause allow from the date of his obtaining possession or, in the case a building which was proposed to be occupied after some construction or reconstruction, from the date of completion thereof, or in the case of a building which was proposed to be demolished, omits to demolish it within two months or such extended period as the prescribed authority may for sufficient cause allow from the date of his obtaining possession, then the prescribed authority or, as the case may be, the District Judge, may, on an application in that behalf within three months from the date of such act or omission, order the landlord to place the evicted tenant in occupation of the building on the original terms and conditions, and on such order being made, the landlord and any person who may be in occupation thereof shall give vacant possession of the building to the said tenant, failing which, the prescribed authority shall put him into possession and may for that purpose use or cause to be used such force as may be necessary.

(2)

Where the landlord after obtaining a release order under clause (b) of sub-section (1) of section 21 demolishes a building and constructs a new building or buildings on its site, then the District Magistrate may, on an application being made in that behalf by the original tenant within such time as may be prescribed, allot to him the new building or such one of them as the District Magistrate after considering his requirements thinks fit, and thereupon that tenant shall be liable to pay as rent for such building an amount equivalent to one per cent per month of the cost of construction thereof (including the cost of demolition of the old building but not including the value of the land) and the building shall, subject to the tenant's liability to pay rent as aforesaid, be subject to the provisions of this Act, and where the tenant makes no such application or refuses or fails to take that building on lease within the time allowed by the District Magistrate, or subsequently ceases to occupy it or otherwise vacates it, that building shall also be exempt from the operation of this Act for the period or the remaining period, as the case may be, specified in sub-section (2) of section 2.

Chapter V

Regulation of other Rights and Obligations of Landlord and Tenant

25.

Prohibition of sub-letting.

(1)

No tenant shall sub-let the whole of the building under his tenancy.

(2)

The tenant may with the permission in writing of the landlord and of the District Magistrate, sub-let a part of the building.

Explanation. - For the purposes of this section-

(i)

where the tenant ceases, within the meaning of clause (b) of sub-section (1) or sub-section (2) of section 12, to occupy the building or any part thereof he shall be deemed to have sub-let that building or part ;

(ii)

lodging a person in a hotel or a lodging house shall not amount to sub-letting.

26.

Certain obligations of the landlord and tenant.

(1)

No landlord shall without lawful authority or excuse cut off withhold or reduce any of the amenities enjoyed by the tenant.

(2)

The landlord shall be bound to keep the building under tenancy wind-proof and water-proof and, subject to any contract in writing to the contrary, carry out periodical white-washing and repairs.

(3)

Subject to any contract in writing to the contrary, no tenant shall, whether during the continuance of the tenancy or after its determination, demolish any improvement effected by him in the building or remove any material used in such improvement, other than any fixtures of a movable nature.

(4)

The landlord shall give to the tenant a receipt for rent payable to and received by him.

27.

Enforcement of landlords's obligation regarding amenities.

(1)

The prescribed authority may, on an application of the tenant, serve upon the landlord a notice requiring him, within such period, not exceeding one week, as may be specified in the notice, to restore any amenity alleged to have been cut off, withheld or reduced in contravention of sub-section (1) of section 26 or to show cause why an order under this section be not passed against him.

(2)

If the landlord fails to restore the amenity within the said period, or to show sufficient cause, the prescribed authority may by order permit the tenant to have the amenity restored at his cost, and thereupon the tenant shall be entitled to recover such cost as may be incurred by him in pursuance of the order, by deduction from the rent payable to the landlord, after furnishing to him the account of the expenditure, and nothing in section 6 shall be deemed to apply to such cost.

28.

Enforcement of landlord's obligation regarding repairs, etc.

(1)

If the landlord fails to carry out white-washing or repairs as required by sub-section (2) of section 26, the tenant may, by notice in writing, call upon him to carry out the same within one month from the date of service of such, notice.

(2)

Where the cost of the requisite white-washing or repairs is likely to exceed the amount of one month's rent in a year, then the tenant in his notice shall also intimate to the landlord his willingness to pay enhanced rent in accordance with the provisions of section 6:

Provided that in the case of repairs necessary for keeping the building wind-proof and water-proof, the provisions of this sub-section shall be construed with the substitution of the reference to one month's rent by a reference to two month's rent,,

(3)

If the landlord fails to comply with the notice, the tenant may himself carry out the white-washing or repairs at a cost not exceeding one month's rent or two months' rent, as the case may be, in a year and deduct the amount from the rent,

and in any such case he shall furnish the account of the expenditure incurred to the landlord.

(4)

Where the tenant claims that the building requires white-washing or repairs to such extent that the cost thereof is likely to exceed the amount of one month's rent or two months' rent, as the case may be, in a year, herein after in this section referred to as "major repairs", and the landlord either declines his responsibility to carry out the same or fails to comply with the notice, the tenant may apply to the prescribed authority for an order under sub-section (5) .

(5)

The prescribed authority on receiving an application under sub-section (4) may, after giving an opportunity of hearing to the parties :-

(a)

either reject the application ; or

(b)

require the landlord to carry out the requisite major repairs within such period as may be specified in the order, and on his failure to do so. permit the tenant to carry out those repairs at a cost not exceeding such amount (which shall not be more than the amount of two years rent) and within such period as may be specified in the order

(6)

Where in pursuance of an order under sub-section (5) any major repairs are carried out by the tenant, he shall furnish an account of the expenditure to the prescribed authority, which shall certify the amount recoverable by the tenant, and thereupon such amount, unless paid or otherwise adjusted by the landlord, may be deducted by the tenant from the rent in monthly instalments not exceeding twenty-five per cent of one month's rent, and in any such case, the enhancement of rent under section 6 shall come into effect only from the month following the month in which the cost is fully recovered by the tenant.

(7)

No appeal or revision shall lie from any order of the prescribed authority under sub-section (5) or sub-section (6) which shall be final.

29.

Special Protection to tenants of buildings destroyed by collective disturbances.

(1)

Where in consequence of the commission of mischief or any other offence in the course of collective disturbances, any building under tenancy is wholly or partly destroyed the tenant shall have the right to re-erect it wholly or partly, as the case may be, at his own expense within a period of six months from such injury :

Provided that if such injury was occasioned by the wrongful act or default of the tenant he shall not be entitled to avail himself of the benefit of this provision.

(2)

Where in consequence of fire, tempest, flood or excessive rainfall, any building under tenancy is wholly or partly destroyed the tenant shall have the right to re-erect or repair it wholly or partly, as the case may be, at his own expense after giving a notice in writing to the landlord within a period of one month from such injury :

Provided that the tenant shall not be entitled to avail himself of the benefit of this provision-

(a)

if such injury was occasioned by his own wrongful act or default ; or

(b)

in respect of any re-erection or repair made before he has given a notice as aforesaid to the landlord or before the expiration of a period of fifteen days after such notice, or if the landlord in the meantime makes an application under section 21, before the disposal of such application ; or

(c)

in respect of any re-erection or repair made after the expiration of a period of six months from such injury or, if the landlord has made any application as aforesaid, from the disposal thereof.

(3)

Where the tenant, before the commencement of this Act, has made any re-erection or repair in exercise of his rights under section 19 of the old Act, or after the commencement of this Act makes any re-erection in the exercise of his right under sub-section (1) or sub-section (2) , -

(a)

the property so re-erected or repaired shall be comprised in the tenancy ;

(b)

the tenant shall not be entitled, whether during the tenancy or after its determination, to demolish the property or parts so erected or repaired or to remove any material used therein other than any fixtures of a movable nature ;

(c)

Notwithstanding, anything contained in sub-section (2) of section 2, the provisions of this Act shall apply to the building so re-erected :

Provided that no application shall be maintainable under section 21 in respect of any such building on the ground mentioned in clause (b) of sub-section (1) thereof within a period of three years from the completion of such re-erection.

30.

Deposit of rent in court in certain circumstance.

(1)

If any person claiming to be a tenant of a building tenders any amount as rent in respect of the building to its alleged landlord and the alleged landlord refuses to accept the same then the former may deposit such amount in the prescribed manner and continue to deposit any rent which he alleges to be due for any subsequent period in respect of such building until the landlord in the meantime signifies by notice in writing to the tenant his willingness to accept it.

(2)

Where any bona fide doubt or dispute has arisen as to the person who is entitled to receive any rent in respect of any building, the tenant may like wise deposit the rent stating the circumstances under which such deposit is made and may until such doubt has been removed or such dispute has been settled by the decision of any competent Court or by settlement between the parties, continue to deposit the rent that may subsequently become due in respect of such building.

(3)

The deposit referred to in sub-section (1) , or sub-section (2) shall be made in the Court of the Munsif having jurisdiction.

(4)

On any deposit being made under sub-section (1) , the Court shall cause a notice of the deposit to be served on the alleged landlord, and the amount of deposit may be withdrawn by that person on application made by him to the Court in that behalf.

(5)

On a deposit being made under sub-section (2), the Court shall cause notice of the deposit to be served on the person or persons concerned and hold the amount of the deposit for the benefit of the person who may be found entitled to it by any competent Court or by a settlement between the parties, and the same shall be payable to such person.

(6)

In respect of a deposit made as aforesaid, it shall be deemed that the person depositing it has paid it on the date of such deposit to the person in, whose favour it is deposited in the case referred to in sub-section (1) or to the landlord in the case referred to in sub-section (2) .

Chapter VI

Penalties and Procedure

31.

Penalties.

(1)

Any person who contravenes any of the provisions of this Act or any order made thereunder or attempts or abets such contravention, shall be punished on conviction with imprisonment of either description for a term which may extend to six months or with fine which may extend to five thousand rupees or with both.

(2)

Notwithstanding, anything contained in section 32 of the Code of Criminal Procedure, 1898, it shall be lawful for a magistrate of the first class trying any offence punishable under this Act to pass a sentence of fine up to five thousand rupees.

(3)

Where a person has been convicted for contravention of sub-section (1) of section 4, the Court convicting him may

direct that out of the fine, if any, imposed and realised from the person so convicted an amount not exceeding the amount paid as premium or additional payment over and above the rent for admission as a tenant or sub-tenant to any building may be paid to the tenant or sub-tenant by whom such payment was made :

Provided that any amount so paid to the tenant shall be taken into account in awarding compensation or restitution to him in any subsequent claim.

32.

Offences by companies.

(1)

If the person committing an offence under this Act is a company, the company as well as every person in charge of and responsible to the company for the conduct of its business at the time of the commission of the offence shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly :

Provided that nothing contained in this sub-section shall render any such person liable to any punishment if he proves that the offence was committed without his knowledge or that he exercised all due diligence to prevent the commission of such offence.

(2)

Notwithstanding, anything contained in sub-section (2), where any offence under this Act has been 'committed by a company and it is proved that the offence has been committed with the consent or connivance of, or that the commission of offence is attributable to any neglect on the part of any managing agent, secretaries and treasurers, director, manager, or other officer of ,the company, such managing agent, secretaries and treasurers, director, manager or other officer of the company shall also be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Explanation - For the purpose of this section-

(a)

"company" means any body corporate, and includes a firm or other association of individuals ; and

(b)

"director", in relation to a firm, means a partner in the firm.

33.

Cognizance of offence.

(1)

No prosecution for an offence punishable under this Act shall be instituted except on a complaint authorised by the District Magistrate :

Provided that where the District Magistrate has improperly or illegally declined to authorise the making of a complaint, the Commissioner may, of his own motion or on application made in this behalf, direct him so to do.

(2)

No court inferior to that of a magistrate of the first class shall try any such offence.

34.

Powers of various authorities and procedure to be followed by them.

(1)

The District Magistrate, the prescribed authority or any appellate authority shall for the purposes of holding any inquiry or hearing any appeal under this Act have the same powers as are vested in the Civil Court under the Code of Civil Procedure, 1908, when trying a suit, in respect of the following matters, namely,-

(a)

summoning and enforcing the attendance of any person and examining him on oath ;

(b)

receiving evidence on affidavits ;

(c)

inspecting a building or its locality, or issuing commissions for the examination of witnesses or documents or local investigation ;

(d)

requiring the discovery and production of documents ;

(e)

awarding, subject to any rules made in that behalf, costs or special costs to any party or requiring security for costs from any party ;

(f)

recording a lawful agreement, compromise or satisfaction and making an order in accordance therewith ;

(g)

any other matter which may be prescribed.

(2)

The District Magistrate, the prescribed authority or appellate authority, while holding an inquiry or hearing' an appeal under this Act, shall be deemed to be a Civil Court within the Meaning of sections 480 and 482 Of the Code of Criminal Procedure, 1898, and any proceeding before him or it to be a judicial proceeding within the meaning of sections 193 and 228 of the Indian Penal Code.

(3)

Where any costs or other sum of money awarded under this Act by the District Magistrate or the prescribed authority or appellate authority remains unpaid, he or it may issue a certificate of recovery in respect thereof in the prescribed form and any person in whose favour such certificate is issued may apply to the court of small cause having jurisdiction under the Provincial small cause Courts Act, 1887, for recovery of the amount specified in the certificate. Such court shall thereupon execute the certificate or cause the same to be executed in the same manner and by the same procedure as if it were a decree for payment of money made by itself in a suit.

(4)

Where any party to any proceeding for the determination of standard rent of or for eviction from a building dies during the pendency of the proceeding, such proceeding May be continued after bringing on the record:

(a)

in the case of the landlord or tenant, his heirS or; legal representatives

(b)

in the case of an unauthorised occupant, any person claiming under him or found in occupation of the building.

(5)

Where any person has been evicted from a building in pursuance of any order of the District Magistrate or the prescribed authority or made on appeal under this Act, the District Magistrate or the prescribed authority, as the case may be, may after service or publication of a notice in that behalf on such persons and in such manner as may be prescribed, remove or cause to be removed or dispose of, in such manner as may be prescribed, any specific property remaining on such building.

(6)

Affidavits to be filed in any proceeding under this Act shall be made in the same manner and conform to the same requirements as affidavits filed under the Code of Civil Procedure, 1908, and may be verified by any officer or other person appointed by the High Court under clause (b) or by an officer appointed by any other court under clause (c) of section 139 of the said Code.

(7)

The District Magistrate, the prescribed authority or appellate authority shall record reasons for every order made under this Act.

(8)

For the purposes of any proceedings under this Act and for purposes connected therewith the said authorities shall have such other powers and shall follow such procedure as may be prescribed.

35.

Application of sections 4, 5 and 12 of Limitation Act, 1963.

- The provisions of sections 4, 5 and 12 of the Limitation Act, 1963, shall mutatis mutandis apply to all proceedings under this Act.

Chapter VII

Miscellaneous and Transitional Provisions

36.

Protection of action taken in good faith.

- No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or

purported or intended to be, done in pursuance of the provisions of this Act or any rule or order made thereunder.

37.

Finality and presumption.

(1)

No order made in exercise of any power conferred by or under this Act shall be called in question in any Court.

(2)

Where an order purports to have been made and signed by any authority in exercise of any power shall, unless the contrary is proved, presume that such order was so made by that authority.

38.

Act to override U.P. Act and Civil Procedure Code.

- The provisions of this Act inconsistent therewith contained in the Code of Civil Procedure, 1908.

39.

Pending suits for eviction relating to building brought under regulation for the first time.

- In any suit for eviction of a tenant from any building to which the old Act did not apply, pending on the date of commencement of this Act, where the tenant within one month: from such date of commencement or from the date of his knowledge of the pendency of the suit, whichever be later, deposits in the court before which the suit is pending, the entire amount of rent and damages for use and occupation. such damages for, use and occupation being calculated at the same rate as rent) together with interest thereon at the rate of nine per cent per annum and the landlord's full costs of the suit, no decree for eviction shall be passed except on any of the, grounds mentioned in the proviso to sub-section (1) or in clauses (b) to (g) of subsection (2) of section 20, and the parties shall be entitled to make necessary amendment in their pleadings and to adduce additional evidence where necessary :

Provided that a tenant the rent payable by whom ,does not exceed twenty-five rupees per month need not deposit any interest as aforesaid.

Explanation - In this section and in section 40, the expression "date of commencement of this Act", in relation to a building, means the date on which this Act becomes applicable to that building.

40.

Pending appeals in suits for eviction relating to buildings brought under regulation for the first time.

- Where an appeal or revision arising out of a suit for eviction of a tenant from any building to which the old Act did not apply is pending on the date of commencement of this Act, it shall be disposed of in accordance with the provisions of section 39, which shall mutatis mutandis apply.

41.

Power of make rules.

- The State Government may by notification in the Gazette make rules to carry out the purposes of this Act, including any rules prescribing fees in respect of any proceeding under this Act.

42.

Laying of rules, etc. before legislature.

- All notifications issued under the provisos to sub-section (3) of section 1 and under sub-section (3) of section 2, and all rules made under this Act shall, as soon as may be after they are issued or made, be laid before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in its one session or in two or more successive sessions and shall, unless some later date is appointed, take effect from the date of their publication in the Gazette subject to such modification or annulment as the two Houses of the Legislature may during the said period agree to make, so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done thereunder.

43.

Repeal and Savings.

(1)

The United Provinces (Temporary) Control of Rent and Eviction Act, 1947, is hereby repealed.

(2)

Notwithstanding such repeal-

(a)

any application or proceeding pending immediately before the commencement of this Act before the District Magistrate

under section 3 of the old Act shall stand transferred to the prescribed authority having jurisdiction and shall be deemed to be an application or proceeding under section 21 of this Act and shall be disposed of in accordance with the provisions of this Act ;

(b)

any application or proceeding pending immediately before the commencement of this Act before the District Magistrate under section 7 of the old Act or under rule 6 of the Control of Rent and Eviction Rules, 1949, made under section 17 of the old Act shall be disposed of by him in accordance with the provisions of sections 16 and 17 of this Act ;

(c)

any proceedings under section 3-A or section 5-A of the old Act pending immediately before the commencement of this Act before the District Magistrate shall be disposed of by the District Magistrate, and any proceeding under section 7-D thereof so pending shall stand transferred for disposal to the prescribed authority, and the decision of the District Magistrate or the prescribed authority shall be deemed to be a decision under section 8, section 9 or section 27, as the case may be, and in the first and second mentioned CAWS, be subject to appeal accordingly ;

(d)

the provisions of section 39 shall mutatis mutandis apply to every proceedings under section 7-B of the old Act pending on the date of commencement of this Act in respect of a building in the same manner as it applies to the buildings to which the old Act was not applicable ;

(e)

proceeding pending immediately before the commencement of this Act in the court of Munsif under section 7-C of the old Act shall be continued and concluded as if this Act had not been passed:

(f)

any proceeding pending immediately before the commencement of this Act in the court of Munsif under section 7-E of the old Act shall be deemed to be a proceeding under section 28 of this Act and shall stand transferred for disposal to the prescribed authority ;

(g)

, any suit, for, fixation of rent pending immediately before the commencement of this Act in the court of Munsif or Civil Judge under sub-section (4) of, section 5 of the old Act shall be decided by that court, and the rate of rent in, respect of the period prior to the commencement of this Act shall be fixed in accordance with the old Act and in respect of any subsequent period, be fixed in accordance with this Act ;

(h)

any court or authority before which any suit or other proceeding relating to the recovery or determination or fixation of rent of, or eviction from, any building is pending immediately before the commencement of this Act may, on an application being made to it within sixty days from such commencement, grant leave to any party to amend its pleading in consequence of the provisions of this Act ;

(i)

any order passed by the District Magistrate before the commencement of this Act, granting or refusing to grant permission under section 3 of the old Act, against which no revision has been filed, shall-

(1)

if such order was made more than thirty days before the commencement of this Act, be final ;

(2)

in any other case, be subject to an appeal to the District Judge, which may be filed within sixty days from the commencement of this Act, and decision of the District Judge, shall be final ;

(j)

any order passed by the District Magistrate, permitting or to permit the landlord to occupy a building under rule 6 of the control of Rent and Eviction Rules, 1949, made under section 17 of the old Act, against which no revision has been filed, shall-

(1)

if such order was made more than thirty days before the commencement of this Act, be final ;

(2)

in any other case, be subject to an appeal to the District Judge which may be filed within sixty days from the commencement of this Act, and the decision of the District Judge shall be final ;

(k)

any order passed by the District. Magistrate, before the commencement of this Act under sub-section (2) of section 7 or under section 7-A of the old Act against which no revision has been filed shall-

(1)

if such order was made more than thirty days before the commencement of this Act, be final ;

(2)

in any other case, be subject to an appeal to the District Judge, which may be filed within sixty days from the commencement of this Act, and the decision of the District Judge shall be final ;

(l)

any order passed by the District. Magistrate granting or refusing to grant permission under section' 3 of the old Act and confirmed, modified or reversed by the Commissioner under sub-section (3) of that section and in respect of which no revision has been OW to the State Government Under section 77F of the old Act before the commencement of this Act. shall be final

(m)

any revision relating to the grant of permission under section 3 of the old Act pending immediately before the commencement of this Act before the Commissioner Shall stand transferred to the District Judge, and his decision shall be final ;

(n)

any revision pending immediately before the commencement of this Act before the Commissioner under sub-section (4) of section 7-A of the old Act "shall be decided by and his order thereon shall be final;

(o)

any revision under section 7-F of the old Act pending immediately before the commencement of this Act before the State Government against any order of the commissioner passed under sub-section (3) of section 3 or sub-section (4) of section 7-A of the old Act shall be disposed of by the State Government;

(p)

any revision under section 7-F of the old Act pending immediately before the commencement of this Act before the State Government against an order of the District Magistrate passed under section 7-A of the old Act against which no revision has been filed before the Commissioner or against an order under sub-section (2) of section 7 of the old Act or an order permitting or refusing to permit the landlord to occupy a building under rule 6 of the Control of Rent and Eviction Rules, 1949, made under section 17 of the old Act, shall stand transferred to the District judge, and his decision shall be final:

(q)

the provisions of section 18 shall mutatis mutandis apply in relation to all appeals filed before the District judge, under clause (i), clause (j) or clause (k) and all revisions transferred to him under clause (m) or clause (p)

(r)

any suit for the eviction of a tenant instituted with the per-mission referred to in section 3 of the old Act or any proceeding arising out of such suit, pending immediately before the commencement of this Act, may be continued and concluded as if this Act had not been passed, and like-wise, any suit for eviction with such permission referred to in clause (1), clause (1) , clause (m) or clause (o) may be instituted after the commencement of this Act ;

(s)

any suit for the eviction of a tenant instituted on any ground mentioned in sub-section (1) of section 3 of the old Act, or any proceeding out of such suit (including any proceeding for the execution of a decree passed on the basis of any agreement, compromise or satisfaction), pending immediately before the commencement of this Act, may be continued and concluded as if this Act had not been passed ;

(t)

any decision of the District Magistrate, the prescribed authority, the District Judge, the Commissioner or the State Government under the foregoing clauses may be enforced, whenever necessary, in like manner as if it were an order of the competent authority under the corresponding provisions of this Act.

44.

Amendment of U.P. Act No. 1 of 1966.

- In section 68 of the Uttar Pradesh Awas Evam Vikas Parishad Adhiniyam 1966, including the (sic) heading thereof, for the words and figures "the U.P. (Temporary) Control of Rent and Eviction Act, 1947." the words and figures "The Uttar

Pradesh Urban Building (Regulation of letting, Rent and Eviction) Act, 1972." shall be substituted and the provision thereto shall be omitted.

Schedule

[See section 3(k)]

Extract of section 2 (f) of the United Provinces (Temporary) Control of Rent and Eviction Act, 1947

"2 (f) "reasonable annual rent" in the case of accommodation constructed before July 1, 1946, means-

(1)

if it is separately assessed to municipal assessment, its municipal assessment plus 25 per cent thereon ;

(2)

if it is a part only of the accommodation so assessed, the pro-portionate amount of the municipal assessment of such accommodation plus 25 per cent thereon ;

(3)

if it is not assessed to municipal assessment-

(i)

but was held by a tenant on rent between April 1, 1942 and June 30, 1946, fifteen times the rent for the one month nearest to and after April 1, 1942, and

(ii)

if it was not so held on rent, the amount determined under section 3-A, and in the case of accommodation, constructed on or after July 1, 1946, means the rent determined in accordance with section 3-A.'

Note - The expression "municipal assessment" referred in the foregoing definition has been defined in section 2 (e) of the said Act as follows :-

'2 (e) "municipal assessment" means the annual rental assessed by the municipal board or notified area, as the case may be, in force on April 1, 1942, in respect of accommodation which was assessed on or before such date and the first assessment made after April 1, 1942, in respect of accommodation which was assessed for the first time after such date.,

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